IN THE UNITED STATES BANKRUPTCY COURT
FOR THE DISTRICT OF DELAWARE

In re:	)	Chapter 11
Omnis Pleasants, LLC[1]	)	Case No. 26-11169 (___)
Debtor.	)	

DEBTOR'S MOTION FOR ENTRY OF INTERIM AND FINAL ORDERS (I) APPROVING DEBTOR'S PROPOSED ADEQUATE ASSURANCE OF PAYMENT FOR FUTURE UTILITY SERVICES; (II) ESTABLISHING PROCEDURES FOR RESOLVING OBJECTIONS BY UTILITY PROVIDERS; (III) PROHIBITING UTILITY PROVIDERS FROM ALTERING, REFUSING, OR DISCONTINUING SERVICES; AND (IV) GRANTING RELATED RELIEF

Omnis Pleasants, LLC, d/b/a Pleasants Power Station, as debtor in possession (the "**Debtor**") in the above-captioned chapter 11 case, respectfully states the following in support of this motion (the "**Motion**"), and relies upon and incorporates by reference the *Declaration of David Hindman, as Chief Executive Officer of Omnis Pleasants, LLC, d/b/a Pleasants Power Station, in Support of Chapter 11 Petition and First Day Motions* (the "**First Day Declaration**") filed concurrently herewith:[2]

RELIEF REQUESTED

1. The Debtor seeks entry of interim and final orders (the "**Interim Order**" and "**Final Order**," respectively), substantially in the forms annexed hereto as **Exhibits A-1** and **A-2**, respectively, (i) approving the proposed form of adequate assurance of payment to the Debtor's utility providers (the "**Utility Providers**," and, individually, each a "**Utility Provider**"), consisting

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1 The last four digits of the Debtor's tax identification number are 2673. The location of the Debtor's principal place of business and the Debtor's service address is One Power Station Boulevard, Belmont, West Virginia, 26134.

2 Capitalized terms used but not otherwise defined herein shall have the meanings ascribed to such terms in the First Day Declaration.

of the Adequate Assurance Deposit (as defined below); (ii) establishing procedures for resolving any objections by the Utility Providers relating to the proposed adequate assurance of payment to the Utility Providers (the "**Adequate Assurance Procedures**"); (iii) prohibiting the Utility Providers from altering, refusing, or discontinuing services; and (iv) granting related relief, including scheduling a hearing (the "**Final Hearing**") to consider entry of the Final Order (the period of time before the Final Hearing, the "**Interim Period**").

JURISDICTION AND VENUE

2. The United States Bankruptcy Court for the District of Delaware (the "**Court**") has jurisdiction over this matter pursuant to 28 U.S.C. §§ 157 and 1334(b) and the *Amended Standing Order of Reference* from the United States District Court for the District of Delaware dated February 29, 2012 (the "**Standing Order**").

3. This is a core proceeding pursuant to 28 U.S.C. § 157(b)(2). Pursuant to Rule 9013-1(f) of the Local Rules of the United States Bankruptcy Court for the District of Delaware (the "**Local Rules**"), the Debtor consents to the entry of a final order by the Court in connection with this Motion to the extent that it is later determined that the Court, absent consent of the parties, cannot enter final orders or judgments in connection herewith consistent with Article III of the United States Constitution.

4. Venue is proper before the Court pursuant to 28 U.S.C. §§ 1408 and 1409.

5. The statutory and legal predicates for the relief requested herein are sections 105(a), 362(d), 363(b), 366, 507(a), 1107(a), and 1108 of title 11 of the United States Code (the "**Bankruptcy Code**"), Rules 6003 and 6004 of the Federal Rules of Bankruptcy Procedure (the "**Bankruptcy Rules**"), and Local Rules 2002-1 and 9013-1.

BACKGROUND

A. General Background

6. On July 26, 2026 (the "**Petition Date**"), the Debtor commenced a voluntary case under chapter 11 of the Bankruptcy Code (the "**Chapter 11 Case**"). Pursuant to sections 1107(a) and 1108 of the Bankruptcy Code, the Debtor continues to operate its business and manage its financial affairs as debtor in possession.

7. As of the date hereof, no request for the appointment of a trustee or examiner has been made, nor has any statutory committee been appointed or designated, in the Chapter 11 Case.

8. The Debtor owns and operates a two-unit, 1,278-megawatt coal-fired power plant, together with related buildings, facilities, electrical generation infrastructure, and transmission powerlines, situated on approximately 190 acres of real property in Belmont, West Virginia (the "**Pleasants Power Station**"). The Pleasants Power Station operates within the PJM Interconnection, LLC ("**PJM**") market region to provide its customers with energy and power.

9. Additional information regarding the Debtor's history and business operations, capital structure and primary secured indebtedness, and the events leading up to the commencement of the Chapter 11 Case can be found in the First Day Declaration.

B. Utility Providers and Utility Services

10. The Pleasants Power Station is the heart of the Debtor's business. To maintain operations at the Pleasants Power Station and ensure an uninterrupted supply of energy and power to customers in the ordinary course, the Debtor obtains electricity, water, waste, sewer service,

telecommunications, internet, and other similar utility services (collectively, the "**Utility Services**") from certain Utility Providers.[3]

11. Attached hereto as **Exhibit B** is a list of the Utility Providers that provide the Utility Services to the Debtor in the ordinary course of business as of the Petition Date (the "**Utility Services List**"). The Utility Services List may not be exhaustive, and the relief requested herein relates to all Utility Providers providing Utility Services to the Debtor, including, without limitation, those listed on the Utility Services List and those that may have been unintentionally left off the Utility Services List. The Debtor's aggregate monthly cost for Utility Services varies depending on the time of the year but, on average, is generally not more than $17,000.00 per month.

12. Maintaining the Utility Services on an uninterrupted basis is essential to the Debtor's ongoing business operations and to the Chapter 11 Case. The Pleasants Power Station provides critical power to customers throughout PJM's network and is the Debtor's primary source of revenue. Any disruption of Utility Services would adversely affect customer goodwill and employee relations, decrease revenues and profits, and jeopardize the Debtor's ability to consummate a successful restructuring, thereby devastating estate value and creditor recoveries. As such, it is critical that the Utility Services continue uninterrupted during the Chapter 11 Case so that the Debtor can continue to successfully operate the Pleasants Power Station.

C. The Proposed Adequate Assurance

13. The Debtor intends to timely pay all undisputed postpetition obligations to the Utility Providers in accordance with prepetition historical practices. The Debtor believes it will

[3] For the avoidance of doubt, the Utility Services, the Utility Providers and the relief requested herein do not include any coal, gas, or other energy services that the Debtor sells and/or generates or uses as raw material for sale and/or generation of power.

have access to sufficient liquidity to satisfy all obligations owed, or to be owed, to the Utility Providers.

14. Nonetheless, the Debtor intends to provide additional assurance of payment by depositing $8,259.00 (the "**Adequate Assurance Deposit**") into a segregated account (the "**Adequate Assurance Account**") that the Debtor will fund within fifteen (15) calendar days of the entry of the Interim Order in accordance with section 366 of the Bankruptcy Code, to be maintained during the pendency of the Chapter 11 Case in the manner provided for herein and in the Interim and Final Orders. This amount represents approximately one-half of the Debtor's monthly average cost of Utility Services, calculated based on the Debtor's year-to-date average utility expenses.[4] Such amount should also account for any cost fluctuations the Debtor may experience during warmer summer months and the colder winter months. Each Utility Provider shall be entitled to funds in the Adequate Assurance Account in the amount set forth for such Utility Provider in the column labeled "Adequate Assurance Deposit" on the Utility Services List.

15. The Debtor will hold the Adequate Assurance Deposit, subject to the Debtor's right to terminate or discontinue the applicable Utility Services, and may apply amounts to any postpetition defaults in payment to the applicable Utility Providers. No liens will encumber the Adequate Assurance Deposit or the Adequate Assurance Account. The Debtor submits that the Adequate Assurance Deposit and the Debtor's ability to pay future utility services in accordance with its prepetition practices (collectively, the "**Proposed Adequate Assurance**") constitutes sufficient adequate assurance in accordance with section 366 of the Bankruptcy Code.

[4] The Debtor's operations have materially increased in calendar year 2026 compared to previous years. Accordingly, the Debtor calculated the Adequate Assurance Deposit based on the average monthly cost of the Utility Services since January 1, 2026, rather than the twelve-month period prior to the Petition Date.

16. Nevertheless, the Debtor proposes to establish the following Adequate Assurance Procedures to the extent that any entity that believes it is a Utility Provider and seeks to make a request for adequate assurance of future payments (each, an "**Adequate Assurance Request**"):

(a) Any Utility Provider that objects to the Debtor's Proposed Adequate Assurance must serve an Adequate Assurance Request on: (i) the Debtor, One Power Station Boulevard, Belmont, West Virginia, 26134 (contact@pleasantspower.com); (ii) proposed co-counsel to the Debtor, (A) Herbert Smith Freehills Kramer (US) LLP, 1177 Avenue of the Americas, New York, New York 10036, Attn: Alexander Woolverton (alexander.woolverton@HSFKramer.com); Brian Shaughnessy (brian.shaughnessy@HSFKramer.com); Andrew Pollack (andrew.pollack@HSFKramer.com) and Jared C. Borriello (jared.borriello@HSFKramer.com) and (B) Young Conaway Stargatt & Taylor, LLP, Rodney Square, 1000 North King Street, Wilmington, Delaware 19801, Attn: Andrew L. Magaziner (amagaziner@ycst.com); Robert F. Poppiti, Jr. (rpoppiti@ycst.com); and S. Alexander Faris (afaris@ycst.com); (iii) counsel to TRAG LLC and RG Energy LLC, DLA Piper LLP (US), 1201 North Market Street, Suite 2100, Wilmington, Delaware 19801, Attn: R. Craig Martin (craig.martin@us.dlapiper.com) and 500 Eighth Street NW, Washington, DC 20004, Attn: Erik F. Stier (erik.stier@us.dlapiper.com); (iv) the Office of the United States Trustee for the District of Delaware, 844 King Street, Suite 2207, Lock Box 35, Wilmington, Delaware 19801, Attn: Benjamin Hackman (benjamin.a.hackman@usdoj.gov); and (v) counsel to the official committee of unsecured creditors (if any) appointed in the Chapter 11 Case (collectively, the "**Objection Notice Parties**").

(b) Any Adequate Assurance Request must: (i) be made in writing, (ii) include information regarding any security deposits paid by the Debtor, (iii) provide evidence that the Debtor has a direct obligation to the Utility Provider, and (iv) explain why the Utility Provider believes the Proposed Adequate Assurance is not sufficient adequate assurance of future payment.

(c) Upon the Debtor's receipt of an Adequate Assurance Request, the Debtor shall have twenty (20) calendar days (the "**Resolution Period**") to negotiate with the Utility Provider to resolve the Utility Provider's Adequate Assurance Request.

(d) Without further order of the Court, the Debtor may enter into agreements granting additional adequate assurance to a Utility Provider serving an Adequate Assurance Request if the Debtor determines that the Adequate Assurance Request is reasonable, *provided, however*, that the Debtor shall maintain a summary ledger of such agreements and their respective terms, and such summary ledger and the agreements, if any, themselves shall be available to the U.S. Trustee and any official committee appointed in the Chapter 11 Case, upon request.

(e) If the Debtor determines that an Adequate Assurance Request is not reasonable and the Debtor is unable to reach an alternative resolution with the Utility Provider, the Debtor, during or immediately after the Resolution Period, will request that the dispute be heard at the next omnibus hearing that is not less than seven (7) business days following the Resolution Period to determine the adequacy of assurance of payment with respect to that Utility Provider, pursuant to section 366(c)(3) of the Bankruptcy Code (such hearing, a "**Determination Hearing**").

(f) Pending resolution of such dispute at the omnibus hearing, the relevant Utility Provider shall be prohibited from altering, refusing, or discontinuing service to the Debtor on account of: (i) unpaid charges for prepetition services, (ii) a pending Adequate Assurance Request, or (iii) any objections filed in response to the Proposed Adequate Assurance, and provided to counsel to TRAG/RGE.

(g) If any utility account with a Utility Provider becomes discontinued or terminated during the course of the Chapter 11 Case, or to the extent the Debtor determines, in its sole discretion, that a Utility Provider should otherwise be removed from the Utility Services List, then without the need for further order of this Court or notice to any parties except as otherwise provided herein, the Debtor shall be authorized to decrease the amount of the Adequate Assurance Deposit by the amount deposited with respect to such account or such Utility Provider, as applicable, provided that the Debtor (i) obtains the affected Utility Provider's consent to do so, or (ii) provides the affected Utility Provider with five (5) business days' prior written notice of their intent to do so (which notice may be via e-mail) and receives no response to such notice. Upon the earlier of the effective date of a chapter 11 plan in the Chapter 11 Case or such other time as the Chapter 11 Case may be closed, the Debtor shall be relieved of the obligation to maintain the Adequate Assurance Deposit without the need for any further notice or action, order or approval of this Court.

17. The Debtor submits that the Adequate Assurance Procedures outlined above provide a straightforward process for Utility Providers to address any concerns they may have with the Proposed Adequate Assurance, ensure the Debtor's continued and uninterrupted receipt of the Utility Services, and promote the efficient administration of the Chapter 11 Case.

18. The Debtor requests that the Court prohibit Utility Providers, including any that are subsequently identified, from altering, refusing, or discontinuing service or requiring additional

assurance of payment aside from the Proposed Adequate Assurance. The Debtor also requests authorization to adjust periodically the amount in the Adequate Assurance Account to reflect the following factors: (a) termination of Utility Services by the Debtor; and (b) entry into any agreements between the Debtor and the applicable Utility Providers.

D. Subsequently Identified Utility Providers

19. In the event the Debtor identifies any further Utility Providers, the Debtor will provide a copy of the Interim Order and the Final Order (as applicable) to such Utility Provider. The Debtor requests authority to amend or supplement the Utility Services List in its sole discretion. Promptly upon the discovery of an additional Utility Provider that was previously omitted from the Utility Services List, the Debtor will increase the Adequate Assurance Deposit in an amount equal to approximately one-half of the Debtor's monthly average cost for any such subsequently identified Utility Provider, and requests that the Adequate Assurance Procedures apply to any subsequently identified Utility Provider, regardless of when a Utility Provider is added to the Utility Services List.

BASIS FOR RELIEF

A. Proposed Adequate Assurance Deposit Provides Utility Providers with Adequate Assurance of Payment

20. The relief requested by the Debtor is consistent with the policy goals of section 366 of the Bankruptcy Code. Pursuant to section 366 of the Bankruptcy Code, "a utility may not alter, refuse, or discontinue service to, or discriminate against" the debtor due to the commencement of a bankruptcy case. *See* 11 U.S.C. § 366. The policy goal of section 366 is to enable a debtor to continue receiving utility services after the bankruptcy commences, provided the debtor gives the utility company adequate assurance of payment for postpetition services. *See* H.R. Rep. No. 95-595, at 350 (1978), *reprinted in* 1978 U.S.C.C.A.N. 5963, 6306; *see also Begley v. Phila. Elec.*

Co., 760 F.2d 46, 49 (3d Cir. 1985) ("[T]he purpose and policy of section 366 is . . . to prevent the threat of termination from being used to collect pre-petition debts, while not forcing the utility to provide services for which it may never be paid.").

21. Further, the Proposed Adequate Assurance and the Adequate Assurance Procedures comply with the requirements of the Bankruptcy Code. Under section 366, the debtor is required to provide adequate assurance of payment—either in the form of a deposit or other security—within twenty (20) days after the bankruptcy commences in order to receive protections from section 366 of the Bankruptcy Code. 11 U.S.C. § 366(b). Section 366(c)(1)(A) of the Bankruptcy Code defines "assurance of payment" to include, among other things, "a cash deposit." 11 U.S.C. § 366(c)(1)(A)(i). The "adequate assurance" must be "satisfactory" to the utility provider. 11 U.S.C. § 366(c)(2). To determine whether a utility provider risks nonpayment from the debtor, a court will examine and analyze the facts and circumstances surrounding the assurance of payment to see if it is satisfactory. *See Mass. Elec. Co. v. Keydata Corp. (In re Keydata Corp.),* 12 B.R. 156, 158 (B.A.P. 1st Cir. 1981) (citing *Va. Elec. & Power Co. v. Cunha (In re Cunha),* 1 B.R. 330 (Bankr. E.D. Va. 1979)); *In re Adelphia Bus. Sols., Inc.,* 280 B.R. 63, 82–83 (Bankr. S.D.N.Y. 2002) (finding that "the heart of the inquiry . . . is the examination of the totality of the circumstances to make an informed judgment as to whether or not the utilities would be subject to an unreasonable risk of payment"). Despite the utility provider having the right to receive "adequate assurance," this right does not constitute, nor does it guarantee, the debtors' ability to pay. *See, e.g.*, *In re Keydata*, 12 B.R. at 158 ("'[A]dequate assurance of payment' does not require an absolute guarantee of payment."); *In re Great Atl. & Pac. Tea Co.*, No. 11-CV-1338, 2011 WL 5546954, at *5 (Bankr. S.D.N.Y. Nov. 14, 2011) (finding that "[c]ourts will approve an amount

that is adequate enough to insure against unreasonable risk of nonpayment, but are not required to give the equivalent of a guaranty of payment in full.").

22. Here, as discussed above, as is customary in this District, the Debtor has calculated the Proposed Adequate Assurance as one-half of the aggregate monthly cost of the Utility Services for all of the Utility Providers on the Utility Services List. Accordingly, the Proposed Adequate Assurance provides the Utility Providers with sufficient adequate assurance and complies with the policy goals and the statutory requirements of section 366 of the Bankruptcy Code.

B. Proposed Adequate Assurance Procedures Balance the Interests of the Utility Providers and Those of the Debtor and Its Estate

23. The Court should approve the proposed Adequate Assurance Procedures because they provide a fair process for any Utility Providers who may wish to modify the Proposed Adequate Assurance while also providing the Debtor with a mechanism and roadmap to address any Adequate Assurance Requests without the need to run to the courthouse for each and every request.

24. To institute the protections that are given to the debtor under section 366 of the Bankruptcy Code, courts are permitted to fashion reasonable procedures, such as the Adequate Assurance Procedures proposed herein. *See, e.g.*, *In re Circuit City Stores, Inc.*, No. 08-35653, 2009 WL 484553, at *5 (Bankr. E.D. Va. Jan. 14, 2009) (stating that "the plain language of § 366 of the Bankruptcy Code allows the Court to adopt the Procedures set forth in the Utility Order."). These procedures are crucial to the sustained operation of the Debtor's business, and if they are not implemented, then the Debtor "could be forced to address numerous requests by utility companies in an unorganized manner at a critical period in their efforts to reorganize." *Id.* Additionally, the rights of the Utility Providers afforded to them under section 366(b) and (c)(2) of the Bankruptcy Code are preserved via the Adequate Assurance Procedures. Specifically, a

Utility Provider may request a modification to the Proposed Adequate Assurance under the Adequate Assurance Procedures.

25. Here, because the Adequate Assurance Procedures are reasonable and align with the purposes and policy goals of section 366 of the Bankruptcy Code, the Court should grant the relief requested herein.

IMMEDIATE RELIEF IS JUSTIFIED

26. Pursuant to Bankruptcy Rule 6003, the Court may grant relief within twenty-one (21) days after the filing of the petition if the "relief is needed to avoid immediate and irreparable harm." Fed. R. Bankr. P. 6003(a). As set forth in the First Day Declaration, the Debtor believes an immediate and orderly transition into chapter 11 is critical to the viability of its business operations. Further, any delay in granting such relief requested herein could hinder the Debtor's operations and restructuring efforts, and could immediately threaten the Debtor's future as a going concern. Accordingly, in order to avoid any such immediate and irreparable harm, the Debtor respectfully requests that the Court grant the relief requested in this Motion on an emergency basis.

REQUEST FOR WAIVER OF STAY

27. The Debtor also requests that the Court waive the stay imposed by Bankruptcy Rule 6004(h), which provides that "[a]n order authorizing the use, sale, or lease of property other than cash collateral is stayed until the expiration of fourteen (14) days after entry of the order, unless the court orders otherwise." Fed. R. Bankr. P. 6004(h). As described above, the relief that the Debtor seeks in this Motion is necessary for the Debtor to operate its business without interruption and to preserve value for its estate. Accordingly, the Debtor respectfully requests that the Court waive the fourteen-day stay imposed by Bankruptcy Rule 6004(h), as the exigent nature of the relief sought herein justifies immediate relief.

28. To implement the foregoing immediately, the Debtor respectfully requests a waiver of the notice requirements of Bankruptcy Rule 6004(a) to the extent they are deemed to apply.

RESERVATION OF RIGHTS

29. Nothing contained in this Motion or any order granting the relief requested in this Motion, and no action taken pursuant to the relief requested or granted (including any payment made in accordance with any such order), is intended as or shall be construed or deemed to be: (a) an admission as to the amount of, basis for, or validity of any claim against the Debtor under the Bankruptcy Code or other applicable non-bankruptcy law; (b) a waiver of the Debtor's or any other party in interest's right to dispute any claim on any grounds; (c) a promise or requirement to pay any particular claim; (d) an implication, admission, or finding that any particular claim is an administrative expense claim, other priority claim, or otherwise of a type specified or defined in this Motion or any order granting the relief requested by this Motion; (e) a request or authorization to assume, adopt, or reject any agreement, contract, or lease pursuant to section 365 of the Bankruptcy Code; (f) an admission as to the validity, priority, enforceability, or perfection of any lien on, security interest in, or other encumbrance on property of the Debtor's estate; or (g) a waiver or limitation of any claims, causes of action, or other rights of the Debtor or any other party in interest against any person or entity under the Bankruptcy Code or any other applicable law. If the Court grants the relief sought herein, any payment made pursuant to the Court's order is not intended and should not be construed as an admission as to the validity of any particular claim or a waiver of the Debtor's rights to subsequently dispute such claim.

NOTICE

30. Notice of the Motion will be given to the following or their respective counsel, as applicable: (i) the Office of the United States Trustee for the District of Delaware; (ii) the parties

included on the Debtor's list of thirty (30) largest unsecured creditors; (iii) the West Virginia Economic Development Authority; (iv) TRAG LLC and RG Energy LLC; (v) Utility Providers; (vi) the United States Attorney's Office for the District of Delaware; (vii) the attorneys general for the state of West Virginia; (viii) the United States Department of Justice; (ix) the Internal Revenue Service; and (x) all parties requesting notice pursuant to Bankruptcy Rule 2002. Notice of this Motion and any order entered hereon will be served in accordance with Bankruptcy Rule 2002 and Local Rule 9013-1(m). In light of the nature of the relief requested herein, the Debtor submits that due and proper notice has been given under the circumstances, and that no other or further notice is necessary.

CONCLUSION

WHEREFORE, the Debtor respectfully requests entry of the Interim Order and Final Order, substantially in the forms attached hereto as **Exhibit A-1** and **Exhibit A-2**, (a) granting the relief requested herein and (b) granting such other relief as the Court may deem just and appropriate under the circumstances.

[Remainder of Page Intentionally Left Blank]

Dated: July 27, 2026

/s/ S. Alexander Faris

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– and –

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**Pending Admission Pro Hac Vice*

Proposed Co-Counsel to the Debtor and Debtor in Possession

EXHIBIT A-1

Proposed Interim Order

IN THE UNITED STATES BANKRUPTCY COURT
FOR THE DISTRICT OF DELAWARE

In re:	)	Chapter 11
Omnis Pleasants, LLC[1]	)	Case No. 26-11169 (___)
Debtor.	)	**Ref. Docket No. __**

INTERIM ORDER
(I) APPROVING DEBTOR'S PROPOSED
ADEQUATE ASSURANCE OF PAYMENT FOR FUTURE
UTILITY SERVICES; (II) ESTABLISHING PROCEDURES
FOR RESOLVING OBJECTIONS BY UTILITY PROVIDERS;
(III) PROHIBITING UTILITY PROVIDERS FROM ALTERING, REFUSING,
OR DISCONTINUING SERVICES; AND (IV) GRANTING RELATED RELIEF

Upon the motion (the "**Motion**")[2] filed by the above-captioned debtor and debtor in possession (collectively, the "**Debtor**") seeking entry of an order (this "**Interim Order**") (i) approving the proposed form of adequate assurance of payment to the Debtor's utility providers (the "**Utility Providers**," and, individually, each a "**Utility Provider**"), (ii) establishing procedures for resolving any objections by the Utility Providers relating to the Proposed Adequate Assurance, (iii) prohibiting the Utility Providers from altering, refusing, or discontinuing services, and (iv) granting related relief; and this Court having found that it has jurisdiction over this matter pursuant to 28 U.S.C. §§ 1334(b) and 157, and the Standing Order; and this Court having found that venue of the Chapter 11 Case and the Motion in this District is proper pursuant to 28 U.S.C. §§ 1408 and 1409; and this Court having found that this is a core proceeding pursuant to 28 U.S.C. § 157(b)(2) and that this Court may enter a final order consistent with Article III of the United

[1] The last four digits of the Debtor's tax identification number are 2673. The location of the Debtor's principal place of business and the Debtor's service address is One Power Station Boulevard, Belmont, West Virginia, 26134.

[2] Capitalized terms used but not otherwise defined herein shall have the meanings ascribed to them in the Motion.

States Constitution; and this Court having found that due and proper notice of the Motion has been given, and that no other or further notice is required or necessary under the circumstances; and upon consideration of the First Day Declaration; and upon the record in the Chapter 11 Case and all of the proceedings had before this Court; and this Court having reviewed the Motion and having heard the statements in support of the relief requested therein at a hearing before this Court; and this Court having found and determined that the legal and factual bases set forth in the Motion establish just cause for the relief granted herein; and after due deliberation and sufficient cause appearing therefor,

IT IS HEREBY ORDERED THAT:

1. The Motion is **GRANTED** on an interim basis as set forth herein.

2. The final hearing (the "**Final Hearing**") on the Motion shall be held on _________, 2026, at _____, prevailing Eastern Time. Any objections or responses to entry of a final order on the Motion shall be filed with the Court, and served so as to be received by the following parties, by no later than 4:00 p.m., prevailing Eastern Time, on _________, 2026: (i) proposed co-counsel to the Debtor, Young Conaway Stargatt & Taylor, LLP, Rodney Square, 1000 North King Street, Wilmington, Delaware 19801, Attn: Andrew L. Magaziner (amagaziner@ycst.com), Robert F. Poppiti, Jr. (rpoppiti@ycst.com), and S. Alexander Faris (afaris@ycst.com); and Herbert Smith Freehills Kramer (US) LLP, 1177 Avenue of the Americas, New York, New York 10036 (Attn: Alexander Woolverton (Alexander.Woolverton@hsfkramer.com), Brian F. Shaughnessy (Brian.Shaughnessy@HSFKramer.com), Andrew Pollack (Andrew.Pollack@HSFKramer.com), and Jared C. Borriello (Jared.Borriello@HSFKramer.com); (ii) counsel to TRAG LLC and RG Energy LLC, DLA Piper LLP (US), 1201 North Market Street, Suite 2100, Wilmington, Delaware 19801, Attn: R. Craig Martin (craig.martin@us.dlapiper.com); and 500 Eighth Street NW,

Washington, DC 20004, Attn: Erik F. Stier (erik.stier@us.dlapiper.com); (iii) Office of the United States Trustee for the District of Delaware, Attn: Benjamin Hackman (benjamin.a.hackman@usdoj.gov), the Office of the United States Trustee for the District of Delaware, 844 King Street, Suite 2207, Lock Box 35, Wilmington, Delaware 19801; and (iv) if any statutory committee has been appointed in the Chapter 11 Case, counsel to such committee. If no objections to the entry of the Final Order are timely filed, this Court may enter the Final Order without further notice or a hearing.

3. All Utility Providers are prohibited from altering, refusing, or discontinuing services on account of any unpaid prepetition charges, the commencement of the Chapter 11 Case, or any perceived inadequacy of the Proposed Adequate Assurance.

4. The following Adequate Assurance Procedures are hereby approved:

(a) Subject to terms herein, the Debtor will establish the Adequate Assurance Account and deposit the Adequate Assurance Deposit, in the aggregate amount of $8,259.00, within fifteen (15) calendar days after entry of this Interim Order.

(b) Any Utility Provider that objects to the Debtor's Proposed Adequate Assurance must serve an Adequate Assurance Request on: (i) the Debtor, One Power Station Boulevard, Belmont, West Virginia, 26134 (contact@pleasantspower.com); (ii) proposed co-counsel to the Debtor, (A) Herbert Smith Freehills Kramer (US) LLP, 1177 Avenue of the Americas, New York, New York 10036, Attn: Alexander Woolverton (alexander.woolverton@HSFKramer.com); Brian Shaughnessy (brian.shaughnessy@HSFKramer.com); Andrew Pollack (andrew.pollack@HSFKramer.com) and Jared C. Borriello (jared.borriello@HSFKramer.com) and (B) Young Conaway Stargatt & Taylor, LLP, Attn: Andrew Magaziner (amagaziner@ycst.com); Robert Poppiti, Jr. (rpoppiti@ycst.com); and S. Alexander Faris (afaris@ycst.com); (iii) counsel to TRAG LLC and RG Energy LLC, DLA Piper LLP (US), 1201 North Market Street, Suite 2100, Wilmington, Delaware 19801, Attn: R. Craig Martin (craig.martin@us.dlapiper.com) and 500 Eighth Street NW, Washington, DC 20004, Attn: Erik F. Stier (erik.stier@us.dlapiper.com); (iv) the Office of the United States Trustee for the District of Delaware, 844 King Street, Suite 2207, Lock Box 35, Wilmington, Delaware 19801, Attn: Benjamin Hackman (benjamin.a.hackman@usdoj.gov); and (v) counsel to the official committee of unsecured creditors (if any) appointed in the Chapter 11 Case (collectively, the "**Objection Notice Parties**").

(c) Any Utility Provider desiring additional assurances of payment in the form of deposits, prepayments, or otherwise must serve a request for additional assurance (an "**Adequate Assurance Request**") on the Objection Notice Parties. An Additional Adequate Assurance Request may be made at any time.

(d) Any Adequate Assurance Request must: (i) be made in writing, (ii) include information regarding any security deposits paid by the Debtor, (iii) provide evidence that the Debtor has a direct obligation to the Utility Provider, and (iv) explain why the Utility Provider believes the Proposed Adequate Assurance is not sufficient adequate assurance of future payment.

(e) Upon the Debtor's receipt of an Adequate Assurance Request, the Debtor shall have twenty (20) calendar days (the "**Resolution Period**") to negotiate with the Utility Provider to resolve the Utility Provider's Adequate Assurance Request.

(f) Without further order of the Court, the Debtor may enter into agreements granting additional adequate assurance to a Utility Provider serving an Adequate Assurance Request if the Debtor determines that the Adequate Assurance Request is reasonable; *provided, however*, that the Debtor shall maintain a summary ledger of such agreements and their respective terms, and such summary ledger and the agreement, if any, themselves shall be available to the U.S. Trustee and any official committee appointed in the Chapter 11 Case, upon request, and provided to counsel to TRAG/RGE.

(g) If the Debtor determines that an Adequate Assurance Request is not reasonable and the Debtor is unable to reach an alternative resolution with the Utility Provider, the Debtor, during or immediately after the Resolution Period, will request that the dispute be heard at the next omnibus hearing that is not less than seven (7) business days following the Resolution Period to determine the adequacy of assurance of payment with respect to that Utility Provider pursuant to section 366(c)(3) of the Bankruptcy Code (such hearing, a "**Determination Hearing**").

(h) Pending resolution of such dispute at the omnibus hearing, the relevant Utility Provider shall be prohibited from altering, refusing, or discontinuing service to the Debtor on account of: (i) unpaid charges for prepetition services, (ii) a pending Adequate Assurance Request, or (iii) any objections filed in response to the Proposed Adequate Assurance.

(i) If any utility account with a Utility Provider becomes discontinued or terminated during the course of the Chapter 11 Case, or to the extent the Debtor determines, in its sole discretion, that a Utility Provider should

> otherwise be removed from the Utility Services List, then without the need for further order of this Court or notice to any parties except as otherwise provided herein, the Debtor shall be authorized to decrease the amount of the Adequate Assurance Deposit by the amount deposited with respect to such account or such Utility Provider, as applicable, provided that the Debtor (i) obtains the affected Utility Provider's consent to do so or (ii) provides the affected Utility Provider with five (5) business days' prior written notice of their intent to do so (which notice may be via e-mail). Upon the earlier of the effective date of a chapter 11 plan in the Chapter 11 Case or such other time as the Chapter 11 Case may be closed, the Debtor shall be relieved of the obligation to maintain the Adequate Assurance Deposit without the need for any further notice or action, order or approval of this Court.

5. The Utility Providers are prohibited from requiring additional adequate assurance of payment other than pursuant to the Adequate Assurance Procedures.

6. Each Utility Provider shall be deemed to have adequate assurance of payment under section 366 of the Bankruptcy Code unless and until: (a) the Debtor, in its discretion, agrees to an alternative assurance of payment with the Utility Provider; or (b) this Court enters an order, after a Determination Hearing, requiring that additional adequate assurance of payment be provided to the Utility Provider.

7. Nothing in this Interim Order is intended or shall be deemed to constitute a finding that any entity is or is not a Utility Provider hereunder or under section 366 of the Bankruptcy Code, whether or not such entity is listed on the Utility Service List or is served with a copy of this Interim Order, the Motion, or the Final Order.

8. The Debtor will cause a copy of this Interim Order, including the Adequate Assurance Procedures, to be served on any subsequently identified Utility Provider within three (3) business days of identifying such Utility Provider, and any such Utility Provider shall be bound by the Adequate Assurance Procedures. The Debtor shall supplement Exhibit B to the Motion with the names of any subsequently identified Utility Providers (each, an "**Additional Utility Provider**") and, as soon as possible, shall increase the aggregate amount in the Adequate

Assurance Account by an amount equal to one-half of the average monthly cost of the Utility Services provided by the Additional Utility Provider. Any such supplement to Exhibit B to the Motion shall be filed with this Court and served on the Additional Utility Provider.

9. Notwithstanding the relief granted in this Interim Order and any actions taken pursuant to such relief, nothing in this Interim Order shall be deemed: (a) an admission as to the validity of any prepetition claim against the Debtor; (b) a waiver of the Debtor's or any other party in interest's right to dispute any prepetition claim on any grounds; (c) a promise or requirement to pay any prepetition claim; (d) an implication or admission that any particular claim is of a type specified or defined in this Interim Order or the Motion; (e) a request or authorization to assume any prepetition agreement, contract, or lease pursuant to section 365 of the Bankruptcy Code; (f) a waiver or limitation of the Debtor's rights or the rights of any other person under the Bankruptcy Code or any other applicable law; (g) a concession by the Debtor that any liens (contractual, common law, statutory, or otherwise) satisfied pursuant to the Motion are valid, and the Debtor expressly reserves its rights to contest the extent, validity, or perfection of, or seek avoidance of, all such liens; or (h) create any rights in favor of, or enhance the status or nature of any claim held by, any person.

10. Notwithstanding anything herein (a) any payment made or to be made pursuant to the authority granted herein, or any authorization contained herein, shall be subject to and in compliance with any orders authorizing the Debtor's use of prepetition collateral (in each case, the "**Adequate Protection Order**"), including any budget in connection therewith (the "**Budget**") and (b) to the extent there is any inconsistency between the Adequate Protection Order and the terms of this Interim Order, the terms of the Adequate Protection Order, including the Budget,

shall control. Nothing herein shall modify, alter, or waive any terms, provisions, requirements, or restrictions of the Adequate Protection Order.

11. Notice of the Motion as provided therein shall be deemed good and sufficient notice thereof and the requirements of Bankruptcy Rule 6004(a) and the Local Rules are satisfied by such notice.

12. Notwithstanding Bankruptcy Rule 6004(h), the terms and conditions of this Interim Order shall be immediately effective and enforceable upon its entry.

13. The Debtor is authorized and empowered to take all actions necessary to implement the relief granted in this Interim Order.

14. The Debtor shall serve a copy of this Interim Order and the Motion on all parties required to receive such service pursuant to Local Rule 9006-1(c).

15. This Court retains jurisdiction with respect to all matters arising from or related to the implementation, interpretation, or enforcement of this Interim Order.

EXHIBIT A-2

Proposed Final Order

IN THE UNITED STATES BANKRUPTCY COURT
FOR THE DISTRICT OF DELAWARE

In re:	)	Chapter 11
Omnis Pleasants, LLC[1]	)	Case No. 26-11169 (___)
Debtor.	)	**Ref. Docket Nos. _ & _**

FINAL ORDER (I) APPROVING DEBTOR'S PROPOSED ADEQUATE ASSURANCE OF PAYMENT FOR FUTURE UTILITY SERVICES; (II) ESTABLISHING PROCEDURES FOR RESOLVING OBJECTIONS BY UTILITY PROVIDERS; (III) PROHIBITING UTILITY PROVIDERS FROM ALTERING, REFUSING, OR DISCONTINUING SERVICES; AND (IV) GRANTING RELATED RELIEF

Upon the motion (the "**Motion**")[2] filed by the above-captioned debtor and debtor in possession (collectively, the "**Debtor**") seeking entry of an order (this "**Final Order**") (i) approving the proposed form of adequate assurance of payment to the Debtor's utility providers (the "**Utility Providers**," and, individually, each a "**Utility Provider**"), (ii) establishing procedures for resolving any objections by the Utility Providers relating to the Proposed Adequate Assurance, (iii) prohibiting the Utility Providers from altering, refusing, or discontinuing services, and (iv) granting related relief; and this Court having found that it has jurisdiction over this matter pursuant to 28 U.S.C. §§ 1334(b) and 157, and the Standing Order; and this Court having found that venue of the Chapter 11 Case and the Motion in this District is proper pursuant to 28 U.S.C. §§ 1408 and 1409; and this Court having found that this matter is a core proceeding pursuant to 28 U.S.C. § 157(b); and this Court having found that due and proper notice of the Motion has been given, and that no other or further notice is required or necessary under the circumstances; and this

[1] The last four digits of the Debtor's tax identification number are 2673. The location of the Debtor's principal place of business and the Debtor's service address is One Power Station Boulevard, Belmont, West Virginia, 26134.

[2] Capitalized terms used but not otherwise defined herein shall have the meanings ascribed to them in the Motion.

Court having determined that it may enter a final order consistent with Article III of the United States Constitution; and upon consideration of the First Day Declaration; and upon the record in the Chapter 11 Case and all of the proceedings had before this Court; and this Court having reviewed the Motion and having heard the statements in support of the relief requested therein at a hearing before this Court, if any; and this Court having found and determined that the relief sought in the Motion is in the best interests of the Debtor, its estate, its creditors, and all other parties in interest; and that the legal and factual bases set forth in the Motion establish just cause for the relief granted herein; and after due deliberation and sufficient cause appearing therefor,

IT IS HEREBY ORDERED THAT:

1. The Motion is **GRANTED** on a final basis as set forth herein.

2. The Debtor shall serve a copy of this Final Order on any Utility Provider identified prior to the entry of this Final Order no later than five (5) business days after the date this Final Order is entered.

3. All Utility Providers are prohibited from altering, refusing, or discontinuing services on account of any unpaid prepetition charges, the commencement of the Chapter 11 Case, or any perceived inadequacy of the Proposed Adequate Assurance.

(a) Any Utility Provider that objects to the Debtor's Proposed Adequate Assurance must serve an Adequate Assurance Request on: (i) the Debtor, One Power Station Boulevard, Belmont, West Virginia, 26134 (contact@pleasantspower.com); (ii) proposed co-counsel to the Debtor, (A) Herbert Smith Freehills Kramer (US) LLP, 1177 Avenue of the Americas, New York, New York 10036, Attn: Alexander Woolverton (alexander.woolverton@HSFKramer.com); Brian F. Shaughnessy (brian.shaughnessy@hsfkramer.com); Andrew Pollack (andrew.pollack@hsfkramer.com) and Jared C. Borriello (jared.borriello@hsfkramer.com) and (B) Young Conaway Stargatt & Taylor, LLP, Rodney Square, 1000 North King Street, Wilmington, Delaware 19801, Attn: Andrew L. Magaziner (amagaziner@ycst.com); Robert F. Poppiti, Jr. (rpoppiti@ycst.com); and S. Alexander Faris (afaris@ycst.com); (iii) counsel to TRAG LLC and RG Energy LLC, DLA

Piper LLP (US), 1201 North Market Street, Suite 2100, Wilmington, Delaware 19801, Attn: R. Craig Martin (craig.martin@us.dlapiper.com) and 500 Eighth Street NW, Washington, DC 20004, Attn: Erik F. Stier (erik.stier@us.dlapiper.com); (iv)the Office of the United States Trustee for the District of Delaware, 844 King Street, Suite 2207, Lock Box 35, Wilmington, Delaware 19801, Attn: Benjamin Hackman (benjamin.a.hackman@usdoj.gov); and (v) counsel to the official committee of unsecured creditors (if any) appointed in the Chapter 11 Case (collectively, the "**Objection Notice Parties**").

(b) Any Utility Provider desiring additional assurances of payment in the form of deposits, prepayments, or otherwise must serve a request for additional assurance (an "**Adequate Assurance Request**") on the Objection Notice Parties. An Additional Adequate Assurance Request may be made at any time.

(c) Any Adequate Assurance Request must: (i) be made in writing, (ii) include information regarding any security deposits paid by the Debtor, (iii) provide evidence that the Debtor has a direct obligation to the Utility Provider, and (iv) explain why the Utility Provider believes the Proposed Adequate Assurance is not sufficient adequate assurance of future payment.

(d) Upon the Debtor's receipt of an Adequate Assurance Request, the Debtor shall have twenty (20) days (the "**Resolution Period**") to negotiate with the Utility Provider to resolve the Utility Provider's Adequate Assurance Request.

(e) Without further order of the Court, the Debtor may enter into agreements granting additional adequate assurance to a Utility Provider serving an Adequate Assurance Request if the Debtor determines that the Adequate Assurance Request is reasonable; *provided, however*, that the Debtor shall maintain a summary ledger of such agreements and their respective terms, and such summary ledger and the agreements, if any, themselves shall be available to the U.S. Trustee and any official committee appointed in the Chapter 11 Case, upon request, and provided to counsel to TRAG/RGE.

(f) If the Debtor determines that the Adequate Assurance Request is not reasonable and the Debtor is unable to reach an alternative resolution with the Utility Provider, the Debtor, during or immediately after the Resolution Period, will request that the dispute be heard at the next omnibus hearing that is not less than seven (7) business days following the Resolution Period to determine the adequacy of assurance of payment with respect to that Utility Provider pursuant to section 366(c)(3) of the Bankruptcy Code (such hearing, a "**Determination Hearing**").

(g) Pending resolution of such dispute at the omnibus hearing, the relevant Utility Provider shall be prohibited from altering, refusing, or discontinuing service to the Debtor on account of: (i) unpaid charges for prepetition services, (ii) a pending Adequate Assurance Request, or (iii) any objections filed in response to the Proposed Adequate Assurance.

(h) If any utility account with a Utility Provider becomes discontinued or terminated during the course of the Chapter 11 Case, or to the extent the Debtor determines, in its sole discretion, that a Utility Provider should otherwise be removed from the Utility Services List, then without the need for further order of this Court or notice to any parties except as otherwise provided herein, the Debtor shall be authorized to decrease the amount of the Adequate Assurance Deposit by the amount deposited with respect to such account or such Utility Provider, as applicable, provided that the Debtor (i) obtains the affected Utility Provider's consent to do so or (ii) provides the affected Utility Provider with five (5) business days' prior written notice of their intent to do so (which notice may be via e-mail). Upon the earlier of the effective date of a chapter 11 plan in the Chapter 11 Case or such other time as the Chapter 11 Case may be closed, the Debtor shall be relieved of the obligation to maintain the Adequate Assurance Deposit without the need for any further notice or action, order or approval of this Court.

4. The Utility Providers are prohibited from requiring additional adequate assurance of payment other than pursuant to the Adequate Assurance Procedures.

5. Each Utility Provider shall be deemed to have adequate assurance of payment under section 366 of the Bankruptcy Code unless and until: (a) the Debtor, in its discretion, agrees to an alternative assurance of payment with the Utility Provider; or (b) this Court enters an order, after a Determination Hearing, requiring that additional adequate assurance of payment be provided to the Utility Provider.

6. Nothing in this Final Order is intended or shall be deemed to constitute a finding that any entity is or is not a Utility Provider hereunder or under section 366 of the Bankruptcy Code, whether or not such entity is listed on the Utility Service List or is served with a copy of this Final Order or the Motion.

7. The Debtor will cause a copy of this Final Order, including the Adequate Assurance Procedures, to be served on any subsequently identified Utility Provider within three (3) business

days of identifying such Utility Provider, and any such Utility Provider shall be bound by the Adequate Assurance Procedures. The Debtor shall supplement Exhibit B to the Motion with the names of any subsequently identified Utility Providers (each, an "**Additional Utility Provider**") and as soon as possible shall increase the aggregate amount in the Adequate Assurance Account by an amount equal to one-half of the average monthly cost of the Utility Services provided by the Additional Utility Provider. Any such supplement to Exhibit B to the Motion shall be filed with this Court and served on the Additional Utility Provider.

8. Notwithstanding the relief granted in this Final Order and any actions taken pursuant to such relief, nothing in this Final Order shall be deemed: (a) an admission as to the validity of any prepetition claim against the Debtor; (b) a waiver of the Debtor's or any other party in interest's right to dispute any prepetition claim on any grounds; (c) a promise or requirement to pay any prepetition claim; (d) an implication or admission that any particular claim is of a type specified or defined in this Final Order or the Motion; (e) a request or authorization to assume any prepetition agreement, contract, or lease pursuant to section 365 of the Bankruptcy Code; (f) a waiver or limitation of the Debtor's rights or the rights of any other person under the Bankruptcy Code or any other applicable law; (g) a concession by the Debtor that any liens (contractual, common law, statutory, or otherwise) satisfied pursuant to the Motion are valid, and the Debtor expressly reserves its rights to contest the extent, validity, or perfection of, or seek avoidance of, all such liens; or (h) create any rights in favor of, or enhance the status or nature of any claim held by, any person.

9. Notwithstanding anything herein (a) any payment made or to be made pursuant to the authority granted herein, or any authorization contained herein, shall be subject to and in compliance with any orders authorizing the Debtor's use of prepetition collateral (in each case,

the "**Adequate Protection Order**"), including any budget in connection therewith (the "**Budget**") and (b) to the extent there is any inconsistency between the Adequate Protection Order and the terms of this Final Order, the terms of the Adequate Protection Order, including the Budget, shall control. Nothing herein shall modify, alter, or waive any terms, provisions, requirements, or restrictions of the Adequate Protection Order.

10. This Final Order shall be immediately effective and enforceable upon its entry.

11. The fourteen-day stay imposed by Bankruptcy Rule 6004(h) is hereby waived to the extent applicable.

12. The Debtor is authorized and empowered to take all actions necessary to implement the relief granted in this Final Order.

13. This Court retains jurisdiction with respect to all matters arising from or related to the implementation, interpretation, or enforcement of this Final Order.

Exhibit B

Utility Providers List

#	Utility Provider	Address	Service(s)	Account Number(s)	Average Monthly Expenditure ($)	Adequate Assurance Deposit ($)
1	AT&T	P.O. Box 6463 Carol Stream, IL 60197-6463	Wireless	287333080525	748.00	374.00
2	City of Belmont	P.O. Box 375 Belmont, WV 26134	Water, Sewer	5-00280-00 5-00300-00	7,916.00	3,958.00
3	Frontier	P.O. Box 211579 Eagan, MN 55121-2879	Wireline / Landline Voice	304-665-2769-122023-4	230.00	115.00
4	Mon Power	341 White Pond Dr. Akron, OH 44320-1119	Energy	110 163 441 089	1,952.00	976.00
5	Verizon	P.O. Box 15043 Albany, NY 12212-5043	Internet	U0552537	2,172.00	1,086.00
6	Waste Management National Services	P.O. Box 3020 Monroe, WI 53566-8320	Waste	32-24430-83006 30-23232-73004 30-23232-83002 30-23233-23004 34-23350-63004	3,500.00	1,750.00
				*****Totals*****	**16,518.00**	**8,259.00**